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| CASE #      | CASE NAME            | HEARING NAME                                                                         |
|-------------|----------------------|--------------------------------------------------------------------------------------|
| CVME2610855 | IN RE: VICTOR GARCIA | HEARING ON PETITION FOR APPROVAL OF TRANSFER OF STRUCTURED SETTLEMENT PAYMENT RIGHTS |

**Tentative Ruling:** Petition is approved.

4.

| CASE #     | CASE NAME                               | HEARING NAME                                   |
|------------|-----------------------------------------|------------------------------------------------|
| MCC1900095 | MURILLO VS CITY OF TEMECULA, CALIFORNIA | MOTION FOR SUMMARY JUDGMENT ON CROSS-COMPLAINT |

**Tentative Ruling:** Motion for Summary Judgment is Denied. Alternative for Summary Adjudication is Denied.

**Background** - Plaintiffs Guadalupe Murillo and Esteban De Los Santos (“Plaintiffs”) filed the present action against multiple parties, including Defendant OHL USA, Inc. (“OHL”), regarding the death of their 23-year-old son, Steven De Los Santos (“decedent”), on January 24, 2019. Plaintiffs Complaint alleges decedent fell from an asphalt walkway and top of concrete wall he was walking on at the Murrieta Creek Flood Control channel, near 28822 Old Town Front St. in Temecula, that was the subject of a public works improvement project. OHL was the general contractor on the project causing his death. They assert two causes of action: 1) Dangerous Condition of Public Property; and 2) Negligence.

Plaintiffs later determined they needed to add the United States as a defendant, so they filed a separate action – *Guadalupe Murillo and Esteban De Los Santos v. United States of America, et al*, USDC Central District case No. 5:20-cv-00212-JGB-DTBx (“Plaintiffs’ Federal Action”). In that Complaint, Plaintiffs alleged decedent’s fall was the result of the improper design, installation and maintenance of the two-wire fence that had been installed along the top of the concrete walls along Murrieta Creek during the improvement project.

Once the federal action was filed, the parties filed a stipulation to stay the present action. The Court entered an order staying the present case on September 3, 2020.

OHL then filed a separate federal lawsuit against Ferreira Construction Co., Inc. dba Ferreira Coastal Construction Co. (“Ferreira”) seeking contractual and equitable indemnity regarding the claims asserted by the plaintiffs – case No. 5:23-CV-00397-JGB-SHK (“OHL’s Federal Action”).

The Central District subsequently granted summary judgment in favor of the United States in Plaintiffs’ Federal Action. The Court found that the dangerous condition—whether the drop-off or the two-wire fence itself—was open and obvious and thus the United States did not owe a duty of care to decedent. The United States was dismissed. Defendants City of Temecula (“Temecula”), Riverside County Flood Control and Water Conservation District (“Riverside District”) also moved for summary judgment based on their lack of ownership and control over the Project at the time of the incident, which was granted. OHL filed a motion for summary judgment only on the issue of